

Opinion of the Court

United States (filed July 9, 2010). The Court granted certiorari, 562 U. S. 960 (2010), and appointed an *amicus curiae* to defend the judgment of the Court of Appeals. Stephen McAllister, a member of the bar of this Court, filed an *amicus* brief and presented an oral argument that have been of considerable assistance to the Court.

II

To conclude that petitioner lacks standing to challenge a federal statute on grounds that the measure interferes with the powers reserved to States, the Court of Appeals relied on a single sentence from this Court's opinion in *Tennessee Elec. Power Co. v. TVA*, 306 U. S. 118 (1939). See 581 F. 3d, at 136–138. As the Court of Appeals noted here, other Courts of Appeals have taken a similar approach. *E. g.*, *United States v. Hacker*, 565 F. 3d 522, 525–527 (CA8 2009); *Oregon v. Legal Servs. Corp.*, 552 F. 3d 965, 971–972 (CA9 2009); *Brooklyn Legal Servs. Corp. v. Legal Servs. Corp.*, 462 F. 3d 219, 234–235 (CA2 2006); *Medeiros v. Vincent*, 431 F. 3d 25, 33–36 (CA1 2005); *United States v. Parker*, 362 F. 3d 1279, 1284–1285 (CA10 2004). That approach is in tension, if not conflict, with decisions of some other Courts of Appeals. See *Gillespie v. Indianapolis*, 185 F. 3d 693, 700–704 (CA7 1999); *Metrolina Family Practice Group, P. A. v. Sullivan*, 767 F. Supp. 1314 (WDNC 1989), *aff'd*, 929 F. 2d 693 (CA4 1991); *Atlanta Gas Light Co. v. United States Dept. of Energy*, 666 F. 2d 1359, 1368, n. 16 (CA11 1982); see also *United States v. Johnson*, 632 F. 3d 912, 918–921 (CA5 2011) (reserving issue); *Lomont v. O'Neill*, 285 F. 3d 9, 14, n. 5 (CAD9 2002) (same); *Nance v. EPA*, 645 F. 2d 701, 716 (CA9 1981) (same).

Tennessee Electric is the appropriate place to begin. It should be clear that *Tennessee Electric* does not cast doubt on Bond's standing for purposes of Article III's case-or-controversy requirement. This Court long ago disapproved of the case as authoritative respecting Article III limitations.